

CONTRACTOR TERMS AND CONDITIONS
(Effective July 2025)

1 THE SERVICES

1.1 The CONTRACTOR shall perform the Services in accordance with the provisions of this Agreement. If the CONTRACTOR becomes aware of anything that will materially affect the scope or timing of the Services, the CONTRACTOR must immediately notify [REDACTED]

1.2 In providing the Services the CONTRACTOR shall exercise the degree of skill, care, diligence and foresight reasonably expected from a skilled and experienced provider. The CONTRACTOR is hereby given notice that [REDACTED] is relying on the accuracy, competence and completeness of the Services and upon the lawful performance of the Services by the CONTRACTOR. The CONTRACTOR shall keep records of information and material gathered or created in performing the Services. If any Services provided by the CONTRACTOR are defective or wholly or partly underperformed then [REDACTED] may require the CONTRACTOR to rectify, perform or re-perform these Services at the CONTRACTOR'S expense.

1.3 Any Key Personnel specified in the Specific Terms shall give first priority to the Services, and shall not become involved in any other project or matter that may adversely affect their ability to provide the Services. The written approval of [REDACTED] shall be obtained by the CONTRACTOR before any such Key Personnel can be replaced or substituted.

1.4 The CONTRACTOR shall apply for and obtain all consents required (including statutory consents and, if applicable, visas and work permits) for providing the Services. The CONTRACTOR shall notify [REDACTED] as soon as practicable upon it being apparent or suspected that any required consent is unavailable or if consent cannot be obtained by the date by which it is required.

2 PAYMENT OF FEE

2.1 [REDACTED] shall pay the CONTRACTOR the Fee and any agreed Disbursements in the amounts and at the times specified in this Agreement. [REDACTED] may however deduct from the Fee any withholding payments, such as non-resident withholding tax, that it is required by law to deduct.

2.2 The CONTRACTOR shall issue an invoice to [REDACTED] for payments due and shall include a breakdown of costs and Disbursements (copies of receipts for Disbursements will be made available to [REDACTED] on request). Where the Services are chargeable with New Zealand Goods and Services Tax (GST) the invoice shall be a valid GST tax invoice. Disbursements will be billed at cost. All payments shall be made by [REDACTED] on the 20th of the month following receipt of a valid invoice. In the event the invoice or part of it is disputed by [REDACTED] then [REDACTED] may withhold payment of the disputed amount until the dispute is resolved in accordance with clause 9.

3 CONFIDENTIAL INFORMATION

3.1 The CONTRACTOR shall not disclose to any third party either during the term of this Agreement or at any time thereafter any confidential or proprietary information belonging to [REDACTED] or any information which relates to its business affairs or activities and which is learned by or disclosed to the CONTRACTOR during the time the CONTRACTOR is performing the Services unless such information has become public knowledge without the default of the CONTRACTOR. The CONTRACTOR may disclose such confidential or proprietary information on a strictly "need to know" basis to its employees, and if a company its officers also, provided that any such employees and officers are first advised of the confidential nature of the information and they are subject to written confidentiality obligations and restrictions on use at least equivalent to those in this Agreement.

3.2 The CONTRACTOR shall not, without [REDACTED] prior written consent, use information or any other property provided by [REDACTED] except for the purpose of providing the Services. The CONTRACTOR shall not engage in any discussion or correspondence concerning the Services with any client to whom [REDACTED] will be supplying the Services without first obtaining the prior consent of [REDACTED]

4 INTELLECTUAL PROPERTY

4.1 Copyright and all other intellectual property rights in all documents, computer programmes, data, information and other things capable of ownership commissioned and paid for by [REDACTED] as part of the Services or created or developed in the course of providing the Services shall vest in [REDACTED]

4.2 To enable [REDACTED] to fully and reasonably utilize the Services the CONTRACTOR grants to [REDACTED] an irrevocable, royalty free, non-exclusive, transferable license to use and, if reasonably required, reproduce all documents, computer programmes, data, information and other things in which the CONTRACTOR holds the intellectual property rights and that have been acquired or created independently of the Services but provided or used as part of the Services.

5 LIABILITY AND INSURANCE

5.1 The CONTRACTOR indemnifies [REDACTED] and will keep [REDACTED] indemnified against any loss, damage or expenses (including legal costs and any taxes, levies, withholdings and deductions due from any payment to the CONTRACTOR and any interest and penalties imposed thereon) of any nature which may arise from breach of this Agreement by the CONTRACTOR or from or as a consequence of the provision of the Services or any act or omission of the CONTRACTOR, except to the extent that [REDACTED] is responsible for the loss, damage or expense.

5.2 Where the Specific Terms contains insurance details, the CONTRACTOR shall maintain the insurance set out in the Specific Terms, for no lesser amount than that specified and for a term expiring no earlier than six years after the Completion Date or the date of termination of this Agreement. At [REDACTED] request the CONTRACTOR shall produce certificates evidencing the currency of the insurance and that the cover meets the requirements of the Specific Terms.

6 VARIATIONS IN SERVICES

[REDACTED] may order variations to the Services in writing or may request the CONTRACTOR to submit proposals for variations to the Services. The variations will be subject to discussion and agreement between [REDACTED] and the CONTRACTOR and the CONTRACTOR will not unreasonably decline to undertake variations to the Services.

7 NO SUBCONTRACTING OR ASSIGNMENT

The CONTRACTOR shall not subcontract or assign or otherwise involve any other person, partnership or corporation in the provision of the Services without the prior written consent of [REDACTED]. The CONTRACTOR shall obtain undertakings of

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confidentiality from any such third party consented to by [REDACTED] consistent with the confidentiality obligations of the CONTRACTOR under this Agreement. The subcontracting of any of the Services shall not relieve the CONTRACTOR from any obligation or liability under this Agreement.

8 SUSPENSION OR TERMINATION

8.1 [REDACTED] may at any time on written notice to the CONTRACTOR suspend the provision of all or part of the Services or terminate this Agreement by written notice to the CONTRACTOR. The CONTRACTOR shall use its best endeavours to immediately cease providing the Services, and shall arrange for the orderly cessation of Services and shall not incur any further expenditure on the Services. Unless such suspension or termination has been ordered by [REDACTED] with cause, or as a result of breach by the CONTRACTOR, [REDACTED] shall pay the CONTRACTOR the amount of Fees and any Disbursements incurred to the date of such suspension or termination.

8.2 Upon completion of the Services or sooner termination or suspension of this Agreement the CONTRACTOR shall deliver to [REDACTED] all documents, records, materials (whether completed or not, or in physical or electronic form) gathered, prepared or provided in performing the Services and shall return to [REDACTED] all materials, data and information provided by [REDACTED] to the CONTRACTOR to enable performance of the Services.

8.3 Completion of the Services or the sooner suspension or termination of this Agreement shall not prejudice or affect the accrued rights or claims and liabilities of [REDACTED] or the CONTRACTOR and shall not affect the rights and obligations of [REDACTED] or the CONTRACTOR as are intended to survive completion, suspension or termination and, in particular, but without limitation the provisions of this clause, and clauses 3, 4, 5, 9 and 16.

9 DISPUTE RESOLUTION

If a dispute arises out of or related to this Agreement [REDACTED] and the CONTRACTOR shall first endeavour, in good faith and without delay, to resolve the dispute by mediation. In the event the dispute is not settled by mediation within 20 days, (or such other period as agreed to in writing by [REDACTED] and the CONTRACTOR) the dispute will be referred to arbitration under the Arbitration Act 1996. There will be a single arbitrator and the arbitration will be held in Wellington, New Zealand. [REDACTED] and the CONTRACTOR will abide by any decision of the arbitrator. The cost of arbitration proceedings shall be borne as directed by the arbitrator.

10 INDEPENDENT CONTRACTOR

10.1 In performing the Services, the CONTRACTOR shall operate as, and have the status of, an independent contractor and shall not act as, or be an agent of [REDACTED] and is not an employee of [REDACTED]. As an independent contractor, The CONTRACTOR shall have the right to determine how the Services will be accomplished except to the extent the scope, quality and nature of the Services are specified in this Agreement.

10.2 The CONTRACTOR shall have no authority or power to bind [REDACTED] to any obligation, or to contract in the name of or to create a liability against [REDACTED] in any way.

11 COMPLIANCE WITH RULES, POLICIES & NZ LAW

While performing the Services, the CONTRACTOR shall comply with all policies and rules of [REDACTED] and with the laws of New Zealand including any made under subsidiary legislation. This Agreement shall be governed by and is to be construed in accordance with New Zealand law, and the parties submit to the jurisdiction of the Courts of New Zealand.

12 HEALTH AND SAFETY

12.1 The parties are responsible for meeting their respective health and safety obligations at law and must as far as reasonably practicable consult, co-operate with and co-ordinate activities with each other and any subcontractors or other parties. The parties shall comply with their worker engagement, participation and representation obligations.

12.2 Prior to commencement of the Services, [REDACTED] shall, to the extent necessary (to be determined at [REDACTED] discretion), inform the CONTRACTOR of any of the work it considers to be hazardous and any measures to manage the hazards and risks that are required by regulation, by industry practice, or by [REDACTED] (acting reasonably), including, where applicable, as set out in [REDACTED] health and safety plans. To the extent required by [REDACTED] the CONTRACTOR will prepare a health and safety plan for the work (the "Plan"). This must identify all anticipated hazards and risks and measures to manage those hazards and risks, including any identified by [REDACTED]. The CONTRACTOR will provide the Plan to [REDACTED] for their review and feedback and will then revise it to address that feedback.

12.3 The parties will comply with the Plan and will keep it up to date as required. The CONTRACTOR will take all reasonably practicable steps to comply with any other reasonable health and safety request made by [REDACTED] while performing the Services. Should either party be in default of any of its health and safety obligations while performing the Services and the other party reasonably considers that it is unsafe for the CONTRACTOR to continue to perform the Services, the other party may require the suspension of performance of the Services until the default is rectified.

12.4 If either party identifies any hazard or risk associated with the carrying out and completion of the Services, that party shall notify the other party of such hazard or risk as soon as practicable. In the event that the CONTRACTOR becomes aware of unforeseen safety risk that is likely to affect the CONTRACTOR's ability to undertake the Services, then the CONTRACTOR shall notify [REDACTED] as soon as practicable and the parties shall consult in good faith to agree an extension of time, variation to the Services and/or variation to the remuneration payable accordingly.

12.5 The CONTRACTOR will take all reasonably practicable steps to assure itself that, from a health and safety perspective, each contractor is competent to undertake the work required of it before such contractor commences work, and will provide [REDACTED] with any information requested so that [REDACTED] can ascertain the suitability, or otherwise, of the CONTRACTOR as part of its approval of the contractor. The CONTRACTOR accepts responsibility for ensuring that all subcontractors are aware of and comply with the site-specific health and safety plan and any other reasonable health and safety request made by [REDACTED] together with the other obligations in this clause to the extent applicable to the work they are undertaking.

12.6 [REDACTED] shall be entitled at any time to audit the CONTRACTOR's controls and procedures to ensure compliance with the site-specific health and safety plan. The CONTRACTOR shall provide all necessary access and information required by [REDACTED] in relation to the audit and any other health and safety monitoring including providing [REDACTED] with its health and safety policies, procedures and requirements.

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13 CONFLICT OF INTEREST

The CONTRACTOR shall notify [REDACTED] immediately the existence or likelihood of a conflict of interest becomes apparent to the CONTRACTOR and shall cooperate with [REDACTED] to resolve any such conflict.

14 ENTIRE AGREEMENT

This Agreement constitutes the entire agreement of [REDACTED] and the CONTRACTOR and supersedes and extinguishes all prior agreements relating to the Services and may be amended only by written agreement signed by [REDACTED] and the CONTRACTOR.

15 NOTICES

15.1 Each notice or other communication under this Agreement is to be in writing and to be made by post, facsimile or personal delivery to the addressee at the facsimile number or address from time to time designated for that purpose by the addressee. The initial facsimile number and address of each party is as specified in this Agreement.

15.2 No communication under this Agreement is effective until received. Communications are, however, deemed to be received: (a) if sent by letter, the third business day after posting; (b) if sent by facsimile, on the business day on which it was sent or, if despatched after 5.00 pm or on a non-business day, on the next business day after the date of despatch; (c) if delivered, when delivered by the sender; (d) if by e-mail, the earlier of the sender's receipt of confirmation of successful delivery, or one working day after dispatch being when the relevant e-mail first leaves the sender's network for delivery to the recipient's address, provided the sender does not receive any indication of the failure, or delay in, delivery within one day after dispatch.

16 RECORDS

The CONTRACTOR must in respect of information and records related to the Services:

16.1 Keep and maintain records in accordance with prudent business practice and all applicable laws.

16.2 Make sure the records are kept safe and are easy to access.

16.3 Give information to [REDACTED] relating to the Services that [REDACTED] reasonably requests, in a format that is usable by [REDACTED] and within a reasonable time of the request.

16.4 Co-operate with [REDACTED] to provide information promptly if the information is required by [REDACTED] to comply with an enquiry or its statutory, parliamentary, or other reporting obligations.

16.5 Make its records available to [REDACTED] during the term of this Agreement and for 7 years after the expiry or termination of this Agreement (unless already provided to [REDACTED] earlier).

16.6 Make sure that records provided by, or created for, [REDACTED] are securely managed and destroyed on their disposal.

17 COUNTERPARTS

This Agreement may be executed in any number of counterparts, including scanned and emailed copies. So long as each party has received a counterpart or counterparts carrying the signatures of each of the other parties, the counterparts together shall constitute a binding and enforceable agreement between the parties.